

BC672941 BC672941

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C734%2C09%2F04%2F2026

Source SHA-256: 86d41c4004835c3aaee0b67258032a37b99910e6054e46d4ab8a981578be8721

Case Number: BC672941 Hearing Date: September 4, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:41 PM on September 3, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 3, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to smcdept734@lacourt.org, with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Defendant,

Plaintiff's brother, allegedly opened up a loan account at the Navy Federal Credit Union in Plaintiff's name without Plaintiff's knowledge or authorization

pursuant to a power of attorney for Plaintiff, and forged Plaintiff's signature on the promissory note, security agreement and disclosure. Defendant obtained \$20,000 and never repaid Plaintiff for the funds Defendant procured. Moreover, Defendant has failed to account to Plaintiff for Defendant's management of Plaintiff's real property. Further, Defendant has opened up credit card accounts in Plaintiff's name with Plaintiff's consent for use exclusively with partnership business, but instead Defendant charged items to his personal use, but has refused to pay Plaintiff for these expenses. Defendant has also opened upon a credit account and lines of credit in Plaintiff's name without Plaintiff's authorization and made numerous charges, but has refused to pay Plaintiff for such charges.

Defendant

filed a Cross-Complaint seeking a determination as to the respective rights and duties of the parties regarding the property that is the subject of the partnership business.

Defendant

Roberto D. Cajulis moves to consolidate this case with related case 26STCV16991.

TENTATIVE RULING

For the reasons set

forth in the Opposition, Defendant Roberto D. Cajulis's motion to consolidate this case with related case 26STCV16991 is DENIED. There is no persuasive reason to consolidate this case—in which the Court issued a final Statement of Decision on March 11, 2026, and the appointment of a referee for accounting is pending—with 26STCV16992, which is not yet set for trial. To the extent that the Court's findings in the Statement of Decision in this case (BC672941) bear upon the issues in the quiet title case (26STCV16992), the Court will take such findings into consideration in its reasoning following the quiet title trial.